



**LEGISLATIVE RETREAT MINUTES
LANCASTER COUNTY BOARD OF COMMISSIONERS
THURSDAY, SEPTEMBER 3, 2026, AT 8:30 A.M.
COUNTY CITY BUILDING, 555 S. 10TH STREET
ROOM 113 – BILL LUXFORD STUDIO**

Advance public notice of the meeting was posted on the County-City Building bulletin board, posted on the Lancaster County, Nebraska website, and emailed to the media on September 2. Notice was also published in the Lincoln Journal Star print and digital editions on August 30.

Commissioners present: Christa Yoakum, Chair
Chelsea Johnson, Vice Chair
Sean Flowerday
Matt Schulte

Commissioners absent: Rick Vest

Others present: David Derbin, Chief Administrative Officer
Leila Luft, Administrative Services Officer, County Clerk's Office

Yoakum noted the location of the Nebraska Open Meetings Act and opened the meeting at 8:37 a.m.

1. APPROVAL OF STAFF MEETING MINUTES FOR AUGUST 27, 2026

MOTION: Johnson moved and Flowerday seconded approval of the minutes. Johnson, Flowerday, Schulte, and Yoakum voted yes. Vest was absent. Motion carried 4-0.

2. OPENING COMMENTS AND REVIEW OF 2026 REGULAR LEGISLATIVE SESSIONS – Christa Yoakum, Lancaster County Board Chair; and Joe Kohout, Brennan Miller, and Sarah Wagelie, Kissel, Kohout, ES Associates LLC

Kohout, Miller, and Wagelie reviewed the 2026 legislative session (see links in agenda). Kohout provided an update on the previous legislative session and outlined priorities for the 2027 session. He reported that the conflict counsel legislation was successfully enacted, while legislation regarding an expedited review process for juveniles in youth facilities did not advance. Other priorities with fiscal impacts were also unsuccessful due to the state's current budget challenges. Kohout noted continued efforts to reduce or replace the inheritance tax, but those proposals did not provide counties with reliable funding. He said the 2027 session will be heavily focused on addressing the state's budget shortfall, with departments preparing for potential 5% reductions and significant discussions happening regarding spending and new revenue sources.

Kohout also discussed issues to monitor for the upcoming session, including data center regulation and license plate reader legislation. He said an upcoming legislative roundtable will focus on data centers and is expected to be primarily informational, while Flowerday noted that statewide data center zoning legislation could be introduced. Schulte raised the possibility of additional legislation on license plate readers, and Kohout said the

County should continue to monitor both issues.

Looking ahead to 2027, Kohout emphasized that the state's budget situation will likely limit consideration of legislation with significant fiscal impacts. He said the Appropriations and Revenue Committees will face substantial work to balance the budget and identify additional revenue, while the outcome of the elections could affect legislative leadership and the ability to reach the 33 votes needed for major measures. Miller noted that the tentative legislative calendar is structured to move quickly through hearings with limited floor time. Kohout also cautioned that a special session before January is possible if revenue forecasts remain poor, although he characterized this as a potential scenario rather than a certainty.

3. NEW PROPOSALS

Corrections Director Brad Johnson presented a proposal to require that eligible individuals obtain state identification cards before their discharge from jail. He explained that the lack of valid identification creates barriers to housing, employment, and other services following release. The proposal would allow the Department of Motor Vehicles to provide services at the jail using a mobile unit, with the County potentially covering the costs or using inmate benefit funds. Yoakum and Flowerday supported the concept and discussed expanding access to additional facilities, including Youth Services and the Crisis Center. Board members agreed the proposal should move forward and that staff should identify other departments that could benefit from the service.

Johnson left the meeting at 9:16 a.m.

Mark Lakamp, Veteran Services Officer, presented a proposal to prohibit transfers from the principal of the Nebraska Veterans Aid Fund to other funds without additional safeguards. He explained that the proposal arose after attempts during the previous legislative session to transfer money from the fund, and that any proposed transfer would require approval through the Veterans Advisory Council process before proceeding through the Legislature. Flowerday and Yoakum expressed support for the legislation but did not believe Lancaster County should lead the effort. Kohout cautioned that the Legislature could still amend the law during a future budget crisis, although Lakamp noted that organized opposition from veterans groups had successfully influenced the previous proposal.

Bob Robles, Risk Management Director, presented a proposal to delegate settlement authority for certain tort claims, allowing smaller claims to be resolved more quickly and reducing costs.

Johnson returned to the meeting at 9:21 a.m.

Robles cited an example in which a claim that may have settled for \$1,400 had grown substantially after a delay and the involvement of an attorney. Following discussion, Derbin clarified that the Board meets frequently enough to provide a quick turnaround for settlement requests, making delegated authority unnecessary. The proposal was therefore set aside.

The Board also discussed modernizing pretrial release, including reducing reliance on money bonds, and the possibility of establishing a mental health court. Flowerday and Yoakum expressed support for both concepts but questioned whether they were likely to advance during the upcoming session. Derbin and Kohout noted that the courts may already have statutory authority to create specialty courts and suggested meeting with court officials to discuss the logistics, costs, and potential county support needed to establish a mental health court before pursuing legislation. Yoakum supported having that conversation and preparing for a future opportunity to advance the proposal.

Schulte discussed ongoing concerns related to petition signature collection and verification workload. Todd Wiltgen, Elections Commissioner, reported that counties, particularly Lancaster and Douglas, continue to carry a disproportionate burden in verifying petition signatures due to current distribution requirements. He explained that significant fraud occurred in recent petition efforts, creating delays and requiring substantial temporary staffing, with Lancaster County spending nearly \$80,000 in two months. Wiltgen noted that the NACO Election Law Committee is considering potential changes to signature distribution thresholds to address these issues, and additional proposals may come from the Secretary of State's office later in the year. The Board requested

to be kept informed as these discussions progress.

4. BREAK

No break.

5. PRIOR PROPOSALS

The Board reviewed several proposed legislative priorities. Lakamp presented a proposal to prohibit deceptive trade practices involving assistance, referrals, or benefits related to veterans' claims, explaining that the proposal would address claims consulting companies whose practices have been found to violate federal law.

Schulte left the meeting at 9:38 a.m.

Lakamp noted that similar legislation had advanced in previous years but ultimately failed and said efforts would be made to identify sponsors and co-sponsors. Yoakum and Flowerday expressed support for the proposal. The Board also discussed Medicaid Section 1115 participation.

Schulte returned to the meeting at 9:40 a.m.

Wagelie explained that the Department could pursue the program without legislation but likely would not do so given current federal changes and departmental constraints. The Board agreed to set the issue aside unless federal policy changes make it more viable. Radios for rural fire departments were also discussed, with Schulte noting that the County does not own the radios and Miller explaining that funding has been difficult to identify. The Board indicated the issue could be deferred for now.

The Board discussed adding funding for the East Beltway to its standing legislative priorities. Schulte and Flowerday supported keeping the project on the priority list because it is a long-term need, with Flowerday suggesting that federal funding opportunities be pursued through the offices of Senator Fischer and Congressman Flood. Kohout agreed that maintaining the project as a standing priority could enable the County to capitalize on future state funding opportunities. The Board also discussed medication-assisted treatment and problem-solving courts, with Wagelie noting that opioid settlement funds could provide a potential funding source.

Schulte left the meeting at 9:47 a.m.

The Board supported continuing to pursue the issue and to explore available state opioid settlement funding, and Wagelie indicated she would ask Senator Quick to continue his support for the proposal.

Schulte returned to the meeting at 9:49 a.m.

Flowerday renewed the discussion of legislation that would provide broader enforcement remedies for special permit violations, including financial sanctions and injunctive relief. He explained that the County currently has limited enforcement options when a property owner violates special permit conditions, generally leaving the County with the choice of allowing the violation or revoking the entire permit. Kohout suggested that the proposal could be particularly useful for data centers by providing an additional mechanism to enforce conditions related to issues such as water use and noise without shutting down an entire project. Derbin explained that injunctive relief could allow a court to order a party to stop a violation until it complies with the County's requirements. The Board agreed the proposal could provide needed middle-ground enforcement authority and noted that it could apply broadly to special permits, including solar projects, wind turbines, radio towers and other developments. Yoakum said stronger enforcement would also address residents' concerns about whether the County has the authority to enforce special permit conditions.

6. STANDING PRIORITIES

The Board reviewed its standing priorities. Property tax relief remained a priority, with Kohout and Miller discussing anticipated proposals involving property tax or valuation caps and the potential effects on local

governments. The Board discussed the need to reduce property taxes while maintaining adequate funding for counties, cities, schools and public safety services. Kohout noted that any alternative revenue source would need to provide sustainable funding to local political subdivisions and discussed sales or income tax options as possibilities, while emphasizing that any new revenue dedicated to public safety or property tax relief should be protected from being redirected through economic development incentives. Flowerday and Johnson agreed that the issue should remain under consideration, particularly given the potential for significant legislative changes in the coming months.

The Board discussed standing priorities related to adult and juvenile criminal justice funding and justice reform. Kohout explained that maintaining these issues as standing priorities gives the County a basis to oppose legislation that would reduce funding for programs serving Lancaster County or shift additional costs to the County. Derbin noted that the County has tracked the costs associated with LB605 since its implementation and emphasized the importance of monitoring legislation that creates additional county expenses. The Board agreed to retain priorities concerning juvenile justice funding, justice reform, and public building commissions. Continued support for a second water supply for Lincoln and surrounding communities, and for a convention center in Lancaster County, also remained priorities, with Schulte emphasizing that the water supply effort should continue to include surrounding communities. The Board retained childhood poverty as a priority and continued support for inheritance tax as a property tax relief mechanism, as well as the county bridge match. Derbin also reported that riparian funding is expected to be brought back for further discussion.

7. PUBLIC COMMENT ON ITEMS ON THE AGENDA

None.

8. ADJOURNMENT

MOTION: Flowerday moved and Johnson seconded to adjourn at 10:09 a.m. Johnson, Flowerday, Schulte, and Yoakum voted yes. Vest was absent. Motion carried 4-0.



Matt Hansen
Lancaster County Clerk

